

dew theory

S K I N — C A R E

Membership & Automatic Renewal Terms

Legal Policy

dt

DOCUMENT DT-LEGAL-012

EFFECTIVE DATE · UPON SEPARATE APPROVAL AND PAID MEMBERSHIP LAUNCH

LAST UPDATED · AUGUST 15, 2026

DEWTHEORYCO.COM

PRE-LAUNCH DRAFT — NOT YET EFFECTIVE
DO NOT ACTIVATE OR ACCEPT PAYMENT UNTIL TERMS ARE COMPLETED

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STATUS

PRE-LAUNCH DRAFT — NOT YET EFFECTIVE

PUBLICATION / USE

DO NOT ACTIVATE OR ACCEPT PAYMENT UNTIL TERMS ARE COMPLETED

Pre-launch status. A membership-interest feature is contemplated, but the public audit did not establish an operational paid membership with approved pricing, cadence or benefits. This document is a drafting framework and must not be used to enroll or charge a consumer until all bracketed commercial terms, state-law review and cancellation mechanics are complete.

1. Membership offer

Dew Theory may offer a paid membership providing specified aesthetic-service, product or other benefits. Before launch, the enrollment page and these Terms must state clearly and conspicuously:

- membership name: **[BUSINESS DECISION REQUIRED]**;
- recurring price: **[BUSINESS DECISION REQUIRED]**;
- billing cadence: **[BUSINESS DECISION REQUIRED]**;
- included benefits/services: **[BUSINESS DECISION REQUIRED]**;
- initial term, if any: **[BUSINESS DECISION REQUIRED]**;
- renewal term: **[BUSINESS DECISION REQUIRED]**;
- taxes/fees: **[BUSINESS DECISION REQUIRED]**; and
- minimum commitment, if any: **[BUSINESS/COUNSEL DECISION REQUIRED]**.

2. Automatic renewal

Unless the consumer cancels in accordance with the disclosed cancellation process, the membership will automatically renew at the disclosed interval and Dew Theory will charge the payment method on file for the then-applicable recurring price plus any disclosed taxes/fees.

This clause must never be shown without the actual price and cadence immediately adjacent to the consumer's express consent.

3. Express recurring-payment consent

Recommended enrollment checkbox after final terms are inserted:

I agree that Dew Theory will charge [PRICE + TAXES/FEES AS APPLICABLE] to my selected payment method every [BILLING CADENCE] until I cancel. I have reviewed the Membership & Automatic Renewal Terms, including how to cancel.

The checkbox must be unchecked by default and separately recorded. Dew Theory should retain the exact renewal offer, price/cadence, policy version/hash, timestamp and cancellation instructions presented at enrollment.

4. Benefits and booking

[BUSINESS DECISION REQUIRED: identify included services/products, discount percentage if any, booking priority, exclusions, blackout rules and whether benefits may be transferred.]

Membership does not guarantee availability of a specific appointment time. Any included treatment remains subject to provider screening, lawful scope, treatment consent and the Booking Policy.

5. Unused benefits, rollover and expiration

[BUSINESS/COUNSEL DECISION REQUIRED: determine whether unused service credits roll over, expire, convert to another benefit, or are forfeited; assess gift-card/prepaid-service law if applicable.] These terms must be disclosed before enrollment and should not be changed retroactively in a materially adverse way without required notice/consent.

6. Cancellation mechanism

Dew Theory must provide an easy, operational cancellation method consistent with applicable federal and state law and the enrollment channel. **[BUSINESS DECISION REQUIRED: online account cancellation, email, telephone and/or other method; effective timing; handling of pending appointments/unused benefits.]**

The consumer should not be forced through unnecessary obstacles, repeated retention screens or a materially more burdensome cancellation process than enrollment.

7. Current federal rule status

Dew Theory should not rely on the FTC's 2024 "Click-to-Cancel" Negative Option Rule as currently operative because that rule was vacated by a federal court. As of August 15, 2026, the FTC has initiated further negative-option rulemaking. The membership must instead be structured under then-current federal law, including the FTC Act and ROSCA where applicable, together with applicable state automatic-renewal laws. Counsel should re-check the legal landscape immediately before launch.

8. Cancellation confirmation and renewal notices

Dew Theory should provide a durable confirmation when a consumer enrolls and when a cancellation is completed. **[COUNSEL REVIEW REQUIRED: determine which jurisdictions require pre-renewal reminders, acknowledgment content, renewal-change notices or specified cancellation channels based on the final sales territory and term.]**

9. Price or benefit changes

Dew Theory should give advance notice of material price or benefit changes and obtain renewed consent where required by law. A changed recurring charge should not be imposed through silence where affirmative consent is legally required.

10. Payment failure

If a recurring charge fails, Dew Theory may notify the member and retry the payment only as permitted by the payment authorization and applicable law. **[BUSINESS DECISION REQUIRED: retry cadence, grace period, suspension and termination rules.]**

11. Pausing membership

[BUSINESS DECISION REQUIRED: whether pauses are permitted; duration/frequency limits; treatment of billing and unused benefits during a pause.]

12. Termination by Dew Theory

Dew Theory may reserve the right to terminate a membership for fraud, abuse, nonpayment, safety concerns or material breach, subject to applicable law. **[BUSINESS/COUNSEL DECISION REQUIRED: refund/credit treatment for prepaid or unused benefits on business-initiated termination.]**

13. Refunds

[BUSINESS/COUNSEL DECISION REQUIRED: refundability of recurring charges, treatment of same-day cancellations, unused benefits and legally mandated refunds.] These Terms must not waive non-waivable rights.

14. Taxes

Applicable sales or service taxes will be charged where required. **[TO CONFIRM: tax treatment of the final membership bundle and merchant-of-record configuration.]**

15. Contact

Membership support and cancellation: **[BUSINESS DECISION REQUIRED: monitored channel(s) that actually process cancellation.]**